



BALUCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY (BPPRA), QUETTA

GUIDELINES ON COMMON AREAS OF NON-COMPLIANCE

***(ISSUED UNDER SECTION 5 OF THE BALUCHISTAN PUBLIC PROCUREMENT
REGULATORY AUTHORITY ACT, 2009)***

AUGUST 28, 2025

Dated, Quetta the 28th August 2025

GUIDELINES ON COMMON AREAS OF NON-COMPLIANCE

(Issued under Section 5 of the Balochistan Public Procurement Regulatory Authority Act, 2009)

1. Preamble

Whereas the Balochistan Public Procurement Regulatory Authority (BPPRA) is mandated under Section 5 of the Balochistan Public Procurement Regulatory Authority Act, 2009 to regulate the public procurement in Balochistan and to monitor and enforce compliance with the Balochistan Public Procurement Legal Framework;

And whereas it is expedient to issue Guidelines on Common Areas of Non-Compliance in Public Procurement to provide clarity in procurement of Goods, Works, Services, and Consulting Services;

These Guidelines are intended to address recurrent instances of non-compliance, provide practical direction on the application of procurement rules, and promote uniformity in practice across Procuring Agencies. With the help of relevant examples, Procuring Agencies are guided to better understand the intent and scope of the applicable rules. While the examples may not equally apply to all cases, the application of each rule must be undertaken with vigilance and in accordance with the BPP Rules.

2. Short Title

These guidelines may be called the "Guidelines on Common Areas of Non-Compliance in Public Procurement, 2025."

3. Scope and Applicability

These Guidelines are applicable to all Procuring Agencies, departments, autonomous bodies, and organizations utilizing provincial consolidated funds and fall under the ambit of applicability of the BPPRA Legal framework and shall extend to all categories of procurement, including Goods, Works, Services and Consulting Services.

4. Areas of Non-Compliance

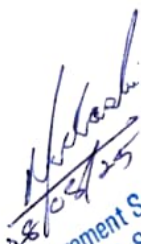
The Guidelines are supplementary in nature and do not replace or override the provisions of the BPPRA Act or BPP Rules. Where any inconsistency arises, the provisions of the Act and Rules shall prevail. Procuring Agencies are expected to apply these Guidelines in letter and spirit while taking hint from the provided illustrative examples. However, it is emphasized that the examples may not be uniformly applicable to all procurement situations; therefore, agencies must exercise due diligence and vigilance in applying each rule in light of their specific circumstances.

4(A) Setting Inappropriate Evaluation Criteria

The evaluation criteria outlined in the bidding documents is the fundamental benchmark for assessing bidders, as stipulated under Rule 34 of the B-PP Rules, 2014. Any infirmity in the eligibility or evaluation criteria attracts BPP Rule 57, which leads to the declaration of mis-procurement and fixation of responsibility on the officials of the Procuring Agency.

The common factors generally used to assess bidders include, but are not limited to, relevant experience, general experience, financial soundness, human resource capacity, infrastructural capability, methodology, and required registrations. However, Procuring Agencies often make the following common mistakes in utilizing these factors:

- (i) Imposing overly rigid technical qualifications, disproportionate financial requirements, or restrictive experience criteria that undermine equitable participation (e.g., requiring bidders to have completed three international projects worth more than PKR 1 billion each for a local assignment worth PKR 50 million).
- (ii) Bidder-specific conditions through requiring irrelevant PEC codes (e.g., high-rise building codes for small projects or bridge codes for road projects).
- (iii) Excessive experience requirements where not needed (e.g., demanding more than three projects, or requiring contractors to show a high percentage of physical progress on ongoing schemes to qualify) and abnormal marks weightage between general and specific experience.
- (iv) Requiring mandatory/special experience in a specific area/locality (e.g., projects executed in certain districts or red-zone areas) without lawful justification.
- (v) Mandating "cash-in-hand" or specific bank balances as a financial criterion instead of accepting bank turnover certificates (e.g., for the last 2–3 years), setting turnover/credit line/cash-flow thresholds exceeding the project cost.
- (vi) Requiring local presence at project sites in routine supply projects at the bidding stage (which could be asked only from the lowest evaluated bidder at contract signing if operationally needed).
- (vii) Requiring unnecessary or irrelevant certificates/documents that add burden without improving quality and restrict competition (e.g., ISO certifications, Professional Tax Certificates, AEDB affiliation, No Demand Certificates, BRA/FBR returns, Tax Clearance Certificates, Stamp Papers for Past Performance, Litigation History, Affidavit of Originality of Documents, Registration of Chamber of Commerce etc.).
- (viii) Requiring physical samples during bidding process compromises the spirit of confidentiality, which the electronic system is particularly designed to provide. Such practices create subjectivity in evaluation and undermine the spirit of e-procurement. Additionally, demanding customized samples whether in e-bidding or manual bidding, imposes an unreasonable burden on suppliers, as these items are often non-saleable once rejected during technical evaluation, thereby discouraging participation and limiting competition. However, samples required for external Lab testing or otherwise, required for validating conformity with the standards stated in the bidding document may be sought after eligibility assessment only from the eligible bidders. Furthermore, the demanded high-value samples must also be returned in good condition to the respective bidder once the technical evaluation is complete.
- (ix) Asking for attested BOQs of past projects at the bidding stage (if required at all, this can be sought at contract signing).
- (x) Giving undue preference to a factor such as equipment in consulting services over more relevant factors such as work plan and HR where equipment is not necessary.
- (xi) Abnormal allocation/weightage of marks among factors (e.g., giving maximum marks to Experience while undervaluing Financial Capacity, HR, or Equipment).


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- (xii) Overstretching project-specific equipment requirements through undue discretionary powers.
- (xiii) Not setting an appropriate passing score for the specific projects.
- (xiv) Repeating the same factors in both eligibility and evaluation (e.g., similar assignments, ongoing projects, turnover certificates), causing overlap and ambiguity.
- (xv) Setting unjustified/unreasonable evaluation mechanisms, such as counting ongoing projects/projects-in-hand at the eligibility stage where not necessary.
- (xvi) Failing to require disclosure of current commitments needed to assess capacity to meet timelines/deliverables for the under-consideration tender.
- (xvii) Leaving blank rows in e-bidding formats, which complicates assessment and can inadvertently qualify all participants.

(B) Evaluating Bids Against the Set Criteria

Bids must be evaluated strictly on the basis of the criteria specified in the bid solicitation documents. Any deviation from the defined criteria, such as introducing new factors or disregarding the prescribed evaluation methodology, constitutes a violation of the Rules and undermines fairness and transparency. Common violations of Rule 35(1) occurring in the evaluation stage are shared herewith for better understanding of the procurement committees:

- (i) Bidder uploads all required documents on the ePPS portal, but the evaluation committee rejects them without valid reason, or conversely, awards marks for documents that were never attached.
- (ii) Prohibiting bids below a fixed threshold instead of requiring rate analysis from the lowest bidder, securing performance security and handling the matter through vigilant contract management.
- (iii) When the criteria require technical specifications of equipment to be assessed, but the committee gives preference to a bidder based on their brand reputation.
- (iv) When the bid solicitation document specifies evaluation on the basis of least cost selection method, but the evaluation committee also adds past performance as a factor during bid opening.
- (v) When the bid solicitation document states that financial capacity will be evaluated based on audited accounts, but the evaluators instead rely on bank statements or verbal assurances from bidders.
- (vi) In certain cases, most or all vendors are rejected except one, and the contract is awarded to the vendor at par or even at the highest quoted cost. Such practices imply manipulation and deliberate misuse of evaluation criteria. Therefore, the Procurement Committee members need to be mindful of their responsibility and their endorsement of such evaluation report, and should confirm that the process was as per the rules.

(C) Avoidance of E-Bidding by Splitting the Project

The purpose of the ePPS, is to promote transparency, enhance efficiency, and ensure open competition among bidders. Using the ePPS as intended builds trust in the process, minimizes manipulation, and attracts the most suitable suppliers. All procurements must be designed on the basis of legitimate technical, operational need and budgetary allocations, and not as a means to avoid e-bidding obligations. Hence, the Procuring Agencies are essentially required to comply with the procurement thresholds outlined in the BPPR (as

amended from time to time). It is however observed, that some Procuring Agencies resort to averting this mandatory requirement, commonly in the following manner:

- (i) Artificially splitting projects into smaller components on the pretext of geographical locations.
- (ii) Excluding the Contingency and BRA Tax (BST) from the project cost as reflected in the PSDP Book in order to avoid e-bidding threshold. Whereas, the Procuring Agency should treat the amount reflected in the PSDP Book for each project as the final estimated cost, inclusive of allocations for contingency or BRA (BST), without exclusions of the latter two.

(D) Selecting Wrong Procurement Category

Selecting the correct procurement category is essential to ensure that the advertised opportunities attract the relevant bidding community, thereby enhancing competition, securing value for money, and ensuring fair participation of qualified suppliers. Failure to do so, leads to application of irrelevant procedures and evaluation criteria, thereby compromising transparency and fairness. It is however noticed that some Procuring Agencies fail to meet this mandatory requirement, commonly in the following manner:

- (i) Attaching a BOQ of goods in a civil works tender, whereas, each such category requires a separate tender to be floated.
- (ii) Classifying a consultancy assignment as goods or services procurement, resulting in requiring warranty certificates and manufacturing capacity from a consulting firm.

(E) Resorting to Alternate Methods of Procurement

Open competitive bidding remains the principal and most effective method to attract broad competition, ensure equal opportunity, and secure the best outcomes for public procurement under BPP Rule 24. Unnecessarily resorting to alternate methods of procurement, instead of using open competitive bidding, undermines the principles of transparency, fairness, and value for money. It is however noticed that some Procuring Agencies transgress this statutory provision, commonly in the following manner:

- (i) Through issuance of variation orders exceeding the limit of 15% which in contravention with the provision of the BPP Rule 51.
- (ii) Utilizing direct procurement for locally manufactured vehicles.
- (iii) Invoking direct contracting or negotiated tendering by declaring an operational emergency that has arisen solely due to the Procuring Agency's own lapses or delays.

(F) Incorrect Application of Framework Agreements

Framework Agreements is a procurement tool designed to facilitate repeated procurements of the same object or class of objects within a period not exceeding twelve months either with rates (through open competitive bidding) or without rates (through pre-qualification) under BPP Rule 51-A. However, it has been observed that some Procuring Agencies contravene this statutory provision, commonly in the following manner:

- (i) Using framework agreements without rate, as a substitute for open competitive bidding, where broader competition is possible and more appropriate, thereby, severely compromising fairness and economy.
- (ii) Entering into framework agreements for procurements that are not repetitive in nature.
- (iii) Extending framework agreements beyond twelve-months

(G) Not Taking Special Conditions of Contract (SCC) Seriously

The Special Conditions of Contract (SCC) in a bidding document are meant to customize and adapt the General Conditions of Contract (GCC) to the specific requirements of a procurement, which is the foundation for settling disputes, litigations and final determination of the responsibilities of both the parties. They define project-specific terms such as payment schedule, delivery timelines, warranties, dispute resolution, and risk allocation, ensuring clarity, legal compliance, and practicality for effective contract execution. It has been observed that the Procuring Agencies are either leaving the SCC fields blank or filling them incorrectly. Common oversights are listed under:

- (i) Not stating clear Delivery timelines and / or Delivery location/s.
- (ii) Not stating the Inspection mechanism for discharging the contractor of his contractual obligations.
- (iii) Not stating the Payment schedule and / or Liquidated Damages (LD) charges and mechanism.

(H) Grievance Redressal Mechanism

The Complaint Redressal Committee (CRC) is constituted by the Procuring Agency under BPP Rule 56, to provide an accessible and transparent forum for addressing grievances of bidders during the procurement process. Its effective functioning builds confidence in the procurement system, promotes fairness, and minimizes dispute escalation to higher forums. However, it has been observed that certain CRCs are not performing their functions effectively, commonly in the following ways:

- (i) Notified CRCs are not headed by officer senior to the Chairman of the Procurement Committee.
- (ii) CRC meetings are not held in timely manner.
- (iii) Inordinate delays in announcement of CRC decisions, resulting in the award of contract during pendency of a grievance in violation of the legal provisions.
- (iv) Oversights in examining the evidence provided by the aggrieved party.
- (v) CRC decisions are not intimated to the aggrieved bidders and BPPRA within the stipulated time.
- (vi) Vague CRC decisions such as "complaint not justified" without reasoning or reference to bidding documents or relevant rules.
- (vii) In some cases, the decisions passed by CRCs are not being implemented by Procuring Agencies, leading to further grievances and litigation.

(I) Delaying On-Account Payments

BPP Rule 52, requires the Procuring Agencies to make on-account payments to contractors against works completed or goods/services delivered, and to ensure the timely release of securities and retention money in accordance with the terms of the contract. This provision is envisaged to maintain fair-play and ensure sustainable procurement activity. Common oversights are listed under:

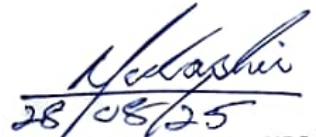
- (i) Not releasing the bid security immediately upon awarding the contract to the lowest evaluated bidder.
- (ii) Not timely releasing the performance security upon successful fulfillment of contractual obligations by the contractor.
- (iii) Inordinate delays in partial or full payment contrary to the stipulations of the contract agreement.

(J) Implementation of the Procurement Review Committee (PRC) Decisions

The Procurement Review Committee (PRC) is a statutory body and serves as the highest quasi-judicial forum of the Government of Balochistan, for matters relating to regulating public procurement. It has been observed, that certain Procuring Agencies are not implementing the decisions of the PRC such as those requiring retendering in cases of mis-procurements. Such non-compliance weakens the grievance redressal mechanism, compromises accountability, and adversely affects stakeholders' confidence in the public procurement system and leads to further litigation. The departments/Procuring Agencies need to pay special attention to implementation of the PRC decisions.

- (Sd) -

Habib ur Rehman Jamot
Managing Director, BPPRA

Handwritten signature of Mubashir Ali Khan in blue ink, with the date 28/08/25 written below it.

Mubashir Ali Khan – FCIPS
Procurement Specialist,
BPPRA
(Goods & Services)



NO. BPPRA/ADMN/1-63/2025/925- 63
GOVERNMENT OF BALOCHISTAN
PUBLIC PROCUREMENT REGULATORY
AUTHORITY (B.P.P.R.A)

Dated Quetta the 29th August 2025

1. The Additional Chief Secretary (Dev:) Government of Balochistan, P&D Department, Quetta.
2. The Additional Chief Secretary (Home & Tribal Affairs Department) Government of Balochistan, Quetta.
3. The Senior Member, Board of Revenue, Government of Balochistan, Quetta
4. The Chairman, Chief Minister's Inspection Team, Balochistan
5. The Chairman BPSC Balochistan Quetta
6. The Principal Secretary to the Chief Minister Balochistan, Quetta.
7. The Principal Secretary to the Governor Balochistan, Quetta.
8. The Inspector General of Police Department, Quetta
09. The Secretary, Government of Balochistan, Finance Department, Quetta.
10. The Secretary, Government of Balochistan, Law & Parliamentary Affairs Deptt: Quetta.
11. The Secretary, Government of Balochistan, C&W Department, Quetta
12. The Secretary, Government of Balochistan, Irrigation Department, Quetta.
13. The Secretary, Government of Balochistan, Public Health Engineering Deptt: Quetta.
14. The Secretary, Government of Balochistan, Agriculture Department, Quetta.
15. The Secretary, Government of Balochistan, Livestock & Dairy Development Deptt: Quetta.
16. The Secretary, Government of Balochistan, Industries Department, Quetta.
17. The Secretary, Government of Balochistan, Mines & Minerals Department, Quetta.
18. The Secretary, Government of Balochistan, Health Department, Quetta.
19. The Secretary, Government of Balochistan, School Education Department, Quetta.
20. The Secretary, Government of Balochistan, Higher Education & Colleges Department, Quetta.
21. The Secretary, Government of Balochistan, Urban Development Department, Quetta.
22. The Secretary, Government of Balochistan, Fisheries & Coastal Development Deptt: Quetta
23. The Secretary, Government of Balochistan, Energy Department, Quetta.
24. The Secretary, Government of Balochistan, Labour & Manpower Department, Quetta.
25. The Secretary, Government of Balochistan, Forest Department, Quetta.
26. The Secretary, Government of Balochistan, Excise & Taxation Department, Quetta.
27. The Secretary, Government of Balochistan, Culture & Tourism Department, Quetta.
28. The Secretary, Government of Balochistan Information Department, Quetta.
29. The Secretary, Government of Balochistan, S&IT Department, Quetta.
30. The Secretary, Government of Balochistan, Food Department, Quetta.
32. The Secretary, Government of Balochistan, Religious Affairs Department, Quetta.
33. The Secretary, Government of Balochistan, Minorities Affairs Department, Quetta.
34. The Secretary, Government of Balochistan IPC Department, Quetta



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| 35. The Secretary, Government of Balochistan, Religious Affairs Department, Quetta. | 36. The Secretary, Government of Balochistan, Social Welfare Department, Quetta. |
| 37. The Secretary, Government of Balochistan, Population Welfare Department, Quetta. | 38. The Secretary, Government of Balochistan, Prosecution Department, Quetta. |
| 39. The Secretary, Government of Balochistan, Transport Department, Quetta. | 40. The Commissioner, Quetta Division, Quetta |
| 41. The Commissioner, Sibi. | 42. The Commissioner, Mekran Division at Turbat. |
| 43. The Commissioner, Kalat Division at Khuzdar. | 44. The Commissioner, Nasirabad Division. |
| 45. The Commissioner, Zhob Division at Loralai. | 46. The Commissioner, Rakhshan Division at Kharan. |
| 47. The Registrar, Balochistan High Court, Quetta | 48. The Chairman Balochistan Service Tribunal, Quetta |
| 49. The Secretary, Balochistan Provincial Assembly, Quetta | 50. The Secretary, Provincial Mohtasib (Ombudsman) Secretariat, Balochistan, Quetta |
| 51. The Secretary, Balochistan Public Service Commission Quetta | |

Subject: **Circulation of "Guidelines on Common Areas of Non-Compliance" Issued Under Section 5 of the BPPRA Act, 2009**

The undersigned is directed to refer to the subject cited above and to enclose herewith a copy of the "**Guidelines on Common Areas of Non-Compliance**" Dated 28th August 2025, issued under Section 5 of the BPPRA Act, 2009. These guidelines are intended to assist in ensuring compliance with the BPP Rules, 2014 during the public procurement process and to help mitigate instances of non-compliance.

2. It is therefore requested to take necessary action and to circulate the enclosed guidelines to your subordinate formations for adherence during the procurement process.



Assistant Director (Admin)
BPPRA

29-08-25

Copy to:-

1. The Accountant General Balochistan, Quetta
2. The Director General Audit Balochistan, Quetta
3. The Director General Treasury & Accounts, Quetta
4. The Additional Secretary (Staff) to Chief Secretary Balochistan, Quetta
5. File